

20STCV43963 20STCV43963

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-08-14

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Case Number: 20STCV43963 Hearing Date: August 14, 2026 Dept: D

CARLOS BARRERAS, ET AL. V. VICKIE WILLIAMS

CASE NO.: 20STCV43963

HEARING: 08/14/2026 @ 8:30 a.m.

#1

TENTATIVE RULING

Petitioner Karla

Ramos's petition for expedited approval of compromise of claim or action or disposition of proceeds of judgment for minor Claimant Elijah Barreras is DENIED; Petitioner may submit an amended Expedited Petition correcting all deficiencies.

Moving Party to give notice.

Petitioner

Karla Ramos (Petitioner) brings this petition for approval of compromise of claim or action or disposition of proceeds of judgment as the Guardian ad litem and parent of the minor Claimant Elijah Barreras. (Claimant).

Legal Standard

Compromises of disputed

claims brought by minors are governed in part by Code of Civil Procedure section 372. The statute allows a

guardian ad litem to appear in court on behalf of a minor claimant and gives the guardian ad litem the power to compromise the minor's claim "with the approval of the court in which the action or proceeding is pending." A petition for court approval of a compromise must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise or covenant. (California Rules of Court (CRC) Rule 7.950.)

CRC Rule 7.952

subdivision (a) requires the attendance of the petitioner and claimant at the hearing on the compromise of the claim unless the court for good cause dispenses with their personal appearance.

CRC Rule 7.955(a)

requires courts to use "a reasonable fee standard" when approving and allowing the amount of attorneys' fees payable from money to be paid for the benefit of a minor and requires that courts "give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor . . . contemplated that the attorneys' fee would be affected by later events." CRC Rule 7.955(b) sets forth fourteen nonexclusive factors the Court may consider in determining a reasonable attorney's fee. CRC Rule 7.955(c) requires that a petition requesting Court approval and allowance of an attorney's fee under 7.955(a) must include a declaration from the attorney that addresses the factors listed in 7.955(b) that are applicable to the matter before the Court.

Analysis

The Court has reviewed the expedited petition filed on June 18, 2026 by Petitioner on behalf of Claimant.

Petitioner has submitted a completed Judicial Council form MC-350 on behalf of the minor Claimant, signed by Petitioner, together with a proposed Order Approving Compromise (form MC-351).

Petitioner seeks court approval of a settlement under which Claimant will receive a gross settlement of \$9,500.00. Petitioner also requests attorney's fees in

the amount of \$2,375.00, representing 25% of the gross settlement. The fee request is supported by the declaration of Jack Bazerkanian, Esq., and the parties' contingency fee agreement, submitted as Attachment 14(a). After payment of the requested attorney's fees, \$666.33 in medical expenses, and \$310.77 in costs, the petition reflects that Claimant's net recovery is \$6,147.90, to be deposited into a blocked account at Chase Bank.

However, the Court DENIES the petition without prejudice for the following reasons:

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No

proof of service on the other parties has been filed.

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Petitioner

should clarify her representative capacity. Although the current petition identifies Karla Ramos solely as Claimant's parent, prior filings and counsel's March 20, 2026, declaration identify Ramos as Claimant's guardian ad litem.

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Item

13(a)(5) is incomplete and should reflect the \$666.33 Medi-Cal lien.

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Item

13(f)(1) appears inconsistent with Item 13(c)(2)(b) and the DHCS documentation because it states there are no statutory or contractual liens.

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Attorney's

Fees: Although counsel submitted a declaration and the contingency fee agreement as Attachment 14(a), the declaration does not sufficiently explain the basis for the requested fee, including a discussion of the applicable factors set forth in California Rules of Court, rule 7.955(b).

Conclusion

Based on the foregoing, Petitioner Karla Ramos's petition for expedited approval of compromise of claim or action or

disposition of proceeds of judgment for minor Claimant Elijah Barreras DENIED; Petitioner may submit an amended Expedited Petition correcting all deficiencies.